

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 06/3/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>Cordova - Trust</u>	TENTATIVE RULING <u>Case:</u> Cordova - Trust 00984697 <u>Date:</u> June 3, 2026 MOTION TO TRANSFER TO CIVIL (ROA 2559) Petitioner Mark Cordova (“Petitioner”) moves to have the cause of action for financial elder abuse transferred to the civil department. (ROA 2559.) The motion is opposed by Respondent Matthew Cordova (“Respondent”). (ROA 2768.) At the onset of this case, Respondent demurred to the cause of action for financial elder abuse on the ground that it belongs in the <i>civil panel</i> of the Orange County Superior Court. (ROA 340.) Respondent argued that the <i>probate court</i> lacks jurisdiction pursuant to Welfare and Institutions Code section 15657.3(a), which states that the court having jurisdiction over probate conservatorships shall have concurrent jurisdiction over elder abuse claims “if a conservator has been appointed for plaintiff prior to the initiation of the action for abuse.” In his opposition to the demurrer, Petitioner agreed with Respondent and stated that the matter should be transferred to the <i>civil panel</i>. (ROA 395.) Both parties appear to misunderstand the court’s jurisdiction over elder abuse claims. Even in the absence of a conservatorship, no part of the Welfare and Institutions Code or the Probate Code preclude the probate court from asserting jurisdiction over a claim for elder abuse that is related to another cause of action before it. Probate Code section 17000(b)(3) gives the court having jurisdiction over a trust concurrent jurisdiction over “other actions and proceedings involving trustees and third persons.” In the present case, the financial elder abuse cause of action is significantly intertwined with the various claims for breach of duty, undue influence, and incapacity that were brought under the Probate Code. Thus, this court has concurrent jurisdiction to rule on the financial elder abuse cause of action. In ruling on the demurrer, the court found that it had subject matter jurisdiction over the elder abuse claim. (ROA 404.) For reasons that are not made clear in the minute order, the court (Honorable, now retired, Judge Belz) stayed the financial elder abuse action until “other claims” had been resolved. The court stated that, at such point, the First Amended Petition “may” be transferred to civil court for resolution: “The Court stays the elder abuse claim on the December 12, 2018 First Amended Petition until such time as the other claims in that petition have been resolved by judgment or dismissal. At that point, the

		elder abuse claim remaining from the December 12, 2018 First Amended Petition may be transferred to Unlimited Civil for resolution.” (ROA 404.) This case has been with the probate court for over eight years. Given its lengthy and convoluted history, as well as the closely related nature of all claims presented in the First Amended Petition, the court finds the probate court is best suited to handle the pre-trial litigation of the financial elder abuse cause of action. The court would only be inclined to transfer the elder abuse cause of action to the <i>civil panel</i> in the event that the probate court is unable to accommodate Petitioner’s right to a jury trial. While the courtrooms at the Costa Mesa Justice Complex are not designed to hold a jury trial due to the lack of a jury box, it is certainly feasible, and easily doable, for the probate court to conduct the trial in one of the many other courthouses of the Orange County Superior Court where courtrooms are designed to conduct a jury trial. At this juncture, the cause of action for financial elder abuse is still at the pleading stage and has, thus far, only been challenged as to the issue of standing. Thus, it remains to be seen whether the cause of action for financial elder abuse will proceed to trial at all. Based on the foregoing, the motion to transfer this case to the civil panel is DENIED without prejudice. Counsel for Respondent is ordered to give notice of this ruling.
2	Cordova-Trust	TENTATIVE RULING <u>Case:</u> Cordova - Trust 00984697 <u>Date:</u> June 3, 2026 MOTION FOR SUMMARY JUDGMENT (ROA 2708) Respondent Matthew Cordova (“Respondent” and/or “Matthew”) moves for summary judgment, or in the alternative summary adjudication, on two causes of action in the First Amended Petition for Instructions (“FAP”) (ROA 135) filed on December 12, 2018, by Petitioner Mark Cordova (“Petitioner” and/or “Mark”). Specifically, Respondent seeks summary judgment or adjudication as to the causes of action for (1) Financial Elder Abuse, and (2) Breach of Fiduciary Duty. Respondent’s request for judicial notice (ROA 2702) is GRANTED as to Exhibits 1-6. While the court takes judicial notice of these exhibits, the court does not take judicial notice of the truths asserted within those exhibits. (<i>Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCourt</i> (2001) 91 Cal. App. 4th 875, 882; <i>Herrera v. Deutsche Bank National Trust Co.</i> (2011) 196 Cal. App. 4th 1366, 1375; Evid. Code, §§ 452, subd. (d)(l), (c), (h), 453; <i>Fontenot v. Wells Fargo Bank, N.A.</i> (2011) 198 Cal. App. 4th 256, 264-265; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal. App. 4th 471, 482.) Respondent’s sole argument as to each cause of action is that Petitioner lacks standing to assert them on behalf of Rachel Cordova (“Rachel”). Many of the individuals involved in this case share a surname. For clarity, the court will use